



SCIENCE FICTION ^K

MARCH 1961 • 35 CENTS

I. O. U.

By EDWARD WELLEN





SCIENCE FICTION[®]

MARCH 1961 • 35 CENTS

I. O. U.

By EDWARD WELLEN



The Project Gutenberg eBook of In the Garden

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: In the Garden

Author: R. A. Lafferty

Release date: December 23, 2019 [eBook #61007]

Most recently updated: October 17, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/61007

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK IN THE
GARDEN ***

**IT WAS A DULL, ROUTINE LITTLE
WORLD. IT DIDN'T EVEN HAVE A
CITY. EVERYTHING IT HAD WAS

IN THE GARDEN**

BY R. A. LAFFERTY

**[Transcriber's Note: This etext was produced from
Worlds of If Science Fiction, March 1961.
Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

The protozoic recorder chirped like a bird. Not only would there be life traces on that little moon, but it would be a lively place. So they skipped several steps in the procedure.

The chordata discerner read *Positive* over most of the surface. There was spinal fluid on that orb, rivers of it. So again they omitted several tests and went to the cognition scanner. Would it show Thought on the body?

Naturally they did not get results at once, nor did they expect to; it required a fine adjustment. But they were disappointed that they found nothing for several hours as they hovered high over the rotation. Then it came—clearly and definitely, but from quite a small location only.

"Limited," said Steiner, "as though within a pale. As though there were but one city, if that is its form. Shall we follow the rest of the surface to find another, or concentrate on this? It'll be twelve hours before it's back in our ken if we let it go now."

"Let's lock on this one and finish the scan. Then we can do the rest of the world to make sure we've missed nothing," said Stark.

There was one more test to run, one very tricky and difficult of analysis, that with the Extraordinary Perception Locator. This was designed simply to locate a source of superior thought. But this might be so varied or so unfamiliar that often both the machine and the designer of it were puzzled as to how to read the results.

The E. P. Locator had been designed by Glaser. But when the Locator had refused to read *Positive* when turned on the inventor himself, bad blood developed between machine and man. Glaser knew that he had extraordinary perception. He was a much honored man in his field. He told the machine so heatedly.

The machine replied, with such warmth that its relays chattered, that Glaser did *not* have extraordinary perception; he had only ordinary perception to an extraordinary degree. There is a *difference*, the machine insisted.

It was for this reason that Glaser used that model no more, but built others more amenable. And it was for this reason also that the owners of Little Probe had acquired the original machine so cheaply.

And there was no denying that the Extraordinary Perception Locator (or Eppel) was a contrary machine. On Earth it had read *Positive* on a number of crack-pots, including Waxey Sax, a jazz tootler who could not even read music. But it had also read *Positive* on ninety per cent of the acknowledged superior minds of the Earth. In space it had been a sound guide to the unusual intelligences encountered. Yet on Suzuki-Mi it had read *Positive* on a two-inch-long worm, only one of them out of billions. For the countless identical worms no trace of anything at all was shown by the test.

So it was with mixed expectations that Steiner locked onto the area and got a flick. He then narrowed to a smaller area (apparently one individual, though this could not be certain) and got very definite action. Eppel was busy. The machine had a touch of the ham in it, and assumed an air of importance when it ran these tests.

Finally it signaled the result, the most exasperating result it ever produces: the single orange light. It was the equivalent of the shrug of the shoulders in a man. They called it the "You tell *me* light."

So among the intelligences there was at least one that might be extraordinary, though possibly in a crackpot way. It is good to be forewarned.

"Scan the remainder of the world, Steiner," said Stark, "and the rest of us will get some sleep. If you find no other spot then we will go down on that one the next time it is in position under us, in about twelve hours."

"You don't want to visit any of the other areas first? Somewhere away from the thoughtful creature?"

"No. The rest of the world may be dangerous. There must be a reason that thought is in one spot only. If we find no others then we will go down boldly and visit this."

So they all, except Steiner, went off to their bunks then: Stark, the Captain; Gregory Gilbert, the executive officer; Wolfgang Langweilig, the engineer; Casper Craig, super-cargo, tycoon and 51% owner of the Little Probe, and

F. R. Briton, S.J., a Jesuit priest who was linguist and checker champion of the craft.

Dawn did not come to the moon-town. The Little Probe hovered stationary in the light and the moon-town came up under the dawn. Then the Probe went down to visit whatever was there.

"There's no town," said Steiner. "Not a building. Yet we're on the track of the minds. There's nothing but a meadow and some boscage, a sort of fountain or pool, and four streams coming out of it."

"Keep on towards the minds," said Stark. "They're our target."

"Not a building, not two sticks or stones placed together. That looks like an Earth-type sheep there. And that looks like an Earth-lion, I'm almost afraid to say. And those two ... why, they could well be Earth-people. But with a difference. Where is that bright light coming from?"

"I don't know, but they're right in the middle of it. Land here. We'll go to meet them at once. Timidity has never been an efficacious tool with us."

Well, they were people. And one could only wish that all people were like them. There was a man and a woman, and they were clothed either in very bright garments or in no garments at all, but only in a very bright light.

"Talk to them, Father Briton," said Stark. "You are the linguist."

"Howdy," said the priest.

He may or may not have been understood, but the two of them smiled at him, so he went on.

"Father Briton from Philadelphia," he said, "on detached service. And you, my good man, what is your handle, your monicker, your tag?"

"Ha-Adamah," said the man.

"And your daughter, or niece?"

It may be that the shining man frowned momentarily at this; but the woman smiled, proving that she was human.

"The woman is named Hawwah," said the man. "The sheep is named sheep, the lion is named lion, the horse is named horse and the hoolock is named hoolock."

"I understand. It is possible that this could go on and on. How is it that you use the English tongue?"

"I have only one tongue; but it is given to us to be understood by all; by the eagle, by the squirrel, by the ass, by the English."

"We happen to be bloody Yankees, but we use a borrowed tongue. You wouldn't have a drink on you for a tubful of thirsty travellers, would you?"

"The fountain."

"Ah—I see."

But the crew all drank of the fountain to be sociable. It was water, but water that excelled, cool and with all its original bubbles like the first water ever made.

"What do you make of them?" asked Stark.

"Human," said Steiner. "It may even be that they are a little more than human. I don't understand that light that surrounds them. And they seem to be clothed, as it were, in dignity."

"And very little else," said Father Briton, "though that light trick does serve a purpose. But I'm not sure they'd pass in Philadelphia."

"Talk to them again," said Stark. "You're the linguist."

"That isn't necessary here, Captain. Talk to them yourself."

"Are there any other people here?" Stark asked the man.

"The two of us. Man and woman."

"But are there any others?"

"How would there be any others? What other kind of people could there be than man and woman?"

"But is there more than one man or woman?"

"How could there be more than one of anything?"

The captain was a little puzzled by this, but he went on doggedly: "Ha-Adamah, what do you think that we are? Are we not people?"

"You are not anything till I name you. But I will name you and then you can be. You are named Captain. He is named Priest. He is named Engineer. He is named Flunky."

"Thanks a lot," said Steiner.

"But are we not people?" persisted Captain Stark.

"No. We are the people. There are no people but two. How could there be other people?"

"And the damnest thing about it," muttered Langweilig, "is, how are you going to prove him wrong? But it does give you a small feeling."

"Can we have something to eat?" asked the Captain.

"Pick from the trees," said Ha-Adamah, "and then it may be that you will want to sleep on the grass. Being not of human nature (which does not need sleep or rest), it may be that you require respite. But you are free to enjoy the garden and its fruits."

"We will," said Captain Stark.

They wandered about the place, but they were uneasy. There were the animals. The lion and lioness were enough to make one cautious, though they offered no harm. The two bears had a puzzling look, as though they wanted either to frolic with you or to mangle you.

"If there are only two people here," said Casper Craig, "then it may be that the rest of the world is not dangerous at all. It looked fertile wherever we scanned it, though not so fertile as this central bit. And those rocks would bear examining."

"Flecked with gold, and possibly with something else," said Stark. "A very promising site."

"And everything grows here," added Steiner. "Those are Earth-fruits and I never saw finer. I've tasted the grapes and plums and pears. The figs and dates are superb, the quince is as flavorsome as a quince can be, the cherries are excellent. And I never did taste such oranges. But I haven't yet tried the —" and he stopped.

"If you're thinking what I'm afraid to think," said Gilbert, "then it will be the test at least: whether we're having a pleasant dream or whether this is reality. Go ahead and eat one."

"I won't be the first to eat one. You eat."

"Ask him first. You ask him."

"Ha-Adamah, is it allowed to eat the apples?"

"Certainly. Eat. It is the finest fruit in the garden."

"Well, the analogy breaks down there," said Stark. "I was almost beginning to believe in the thing. But if it isn't that, then what. Father Briton, you are the linguist, but in Hebrew does not Ha-Adamah and Hawwah mean—?"

"Of course they do. You know that as well as I."

"I was never a believer. But would it be possible for the exact same proposition to maintain here as on Earth?"

"All things are possible."

And it was then that Ha-Adamah, the shining man, gave a wild cry: "No, no. Do not approach it. It is not allowed to eat of that one!"

It was the pomegranate tree, and he was warning Langweilig away from it.

"Once more, Father," said Stark, "you should be the authority; but does not the idea that it was the apple that was forbidden go back only to a medieval painting?"

"It does. The name of the fruit is not mentioned in Genesis. In Hebrew exegesis, however, the pomegranate is usually indicated."

"I thought so. Question the man further, Father. This is too incredible."

"It is a little odd. Adam, old man, how long have you been here?"

"Forever less six days is the answer that has been given to me. I never did understand the answer, however."

"And have you gotten no older in all that time?"

"I do not understand what 'older' is. I am as I have been from the beginning."

"And do you think that you will ever die?"

"To die I do not understand. I am taught that it is a property of fallen nature to die, and that does not pertain to me or mine."

"And are you completely happy here?"

"Perfectly happy according to my preternatural state. But I am taught that it might be possible to lose that happiness, and then to seek it vainly through all the ages. I am taught that sickness and ageing and even death could come if this happiness were ever lost. I am taught that on at least one other unfortunate world it has actually been lost."

"Do you consider yourself a knowledgeable man?"

"Yes, since I am the only man, and knowledge is natural to man. But I am further blessed. I have a preternatural intellect."

Then Stark cut in once more: "There must be some one question you could ask him, Father. Some way to settle it. I am becoming nearly convinced."

"Yes, there is a question that will settle it. Adam, old man, how about a game of checkers?"

"This is hardly the time for clowning," said Stark.

"I'm not clowning, Captain. How about it, Adam? I'll give you choice of colors and first move."

"No. It would be no contest. I have a preternatural intellect."

"Well, I beat a barber who was champion of Germantown. And I beat the champion of Morgan County, Tennessee, which is the hottest checker center on Earth. I've played against, and beaten, machines. But I never played a preternatural mind. Let's just set up the board, Adam, and have a go at it."

"No. It would be no contest. I would not like to humble you."

They were there for three days. They were delighted with the place. It was a world with everything, and it seemed to have only two inhabitants. They went everywhere except into the big cave.

"What is there, Adam?" asked Captain Stark.

"The great serpent lives there. I would not disturb him. He has long been cranky because plans he had for us did not materialize. But we are taught that should ever evil come to us, which it cannot if we persevere, it will come by him."

They learned no more of the real nature of the sphere in their time there. Yet all but one of them were convinced of the reality when they left. And they talked of it as they took off.

"A crowd would laugh if told of it," said Stark, "but not many would laugh if they had actually seen the place, or them. I am not a gullible man, but I am convinced of this: that this is a pristine and pure world and that ours and all the others we have visited are fallen worlds. Here are the prototypes of our first parents before their fall. They are garbed in light and innocence, and they have the happiness that we have been seeking for centuries. It would be a crime if anyone disturbed that happiness."

"I too am convinced," said Steiner. "It is Paradise itself, where the lion lies down with the lamb, and where the serpent has not prevailed. It would be the darkest of crimes if we or others should play the part of the serpent, and intrude and spoil."

"I am probably the most skeptical man in the world," said Casper Craig the tycoon, "but I do believe my eyes. I have been there and seen it. It is indeed an unspoiled Paradise; and it would be a crime calling to the wide heavens for vengeance for anyone to smirch in any way that perfection.

"So much for that. Now to business. Gilbert, take a gram: Ninety Million Square Miles of Pristine Paradise for Sale or Lease. Farming, Ranching, exceptional opportunities for Horticulture. Gold, Silver, Iron, Earth-Type Fauna. Terms. Special Rates for Large Settlement Parties. Write, Gram, or call in person at any of our planetary offices as listed below. Ask for Brochure—Eden Acres Unlimited."

Down in the great cave that Old Serpent, a two-legged one among whose names were "Snake-Oil Sam," spoke to his underlings:

"It'll take them fourteen days to get back with the settlers. We'll have time to overhaul the blasters. We haven't had any well-equipped settlers for six weeks. It used to be we'd hardly have time to strip and slaughter and stow before there was another batch to take care of."

"I think you'd better write me some new lines," said Adam. "I feel like a goof saying those same ones to each bunch."

"You are a goof, and therefore perfect for the part. I was in show business long enough to know never to change a line too soon. I did change Adam and Eve to Ha-Adamah and Hawwah, and the apple to the pomegranate. People aren't becoming any smarter—but they are becoming better researched, and they insist on authenticity.

"This is still a perfect come-on here. There is something in human nature that cannot resist the idea of a Perfect Paradise. Folks will whoop and holler to their neighbors to come in droves to spoil and mar it. It isn't greed or the desire for new land so much—though that is strong too. Mainly it is the feverish passion to befoul and poison what is unspoiled. Fortunately I am sagacious enough to take advantage of this trait. And when you start to farm a new world on a shoestring you have to acquire your equipment as you can."

He looked proudly around at the great cave with its mountains and tiers of materials, heavy machinery of all sorts, titanic crates of foodstuff space-sealed; wheeled, tracked, propped, vaned and jetted vehicles; and power packs to run a world.

He looked at the three dozen space ships stripped and stacked, and at the rather large pile of bone-meal in one corner.

"We will have to have another lion," said Eve. "Bowser is getting old, and Marie-Yvette abuses him and gnaws his toes. And we do have to have a big-maned lion to lie down with the lamb."

"I know it, Eve. The lion is a very important prop. Maybe one of the crackpot settlers will bring a new lion."

"And can't you mix another kind of shining paint? This itches. It's hell."

"I'm working on it."

Casper Craig was still dictating the gram:

"Amazing quality of longevity seemingly inherent in the locale. Climate ideal. Daylight or half-light. All twenty-one hours from Planet Delphina and from Sol. Pure water for all industrial purposes. Scenic and storied. Zoning and pre-settlement restrictions to insure congenial neighbors. A completely planned globular settlement in a near arm of our own galaxy. Low taxes and liberal credit. Financing our specialty—"

"And you had better have an armed escort when you return," said Father Briton.

"Why in cosmos would we want an armed escort?"

"It's as phony as a seven-credit note!"

"You, a man of the cloth doubt it? And us ready skeptics convinced by our senses? Why do you doubt?"

"It is only the unbelieving who believe so easily in obvious frauds. Theologically unsound, dramaturgically weak, philologically impossible, zoologically rigged, salted conspicuously with gold and shot through with anachronisms. And moreover he was afraid to play me at checkers."

"What?"

"If I have a preternatural intellect I wouldn't be afraid of a game of checkers with anyone. Yet there was an unusual mind there somewhere; it was just that he chose not to make our acquaintance personally."

"They looked at the priest thoughtfully.

"But it was Paradise in one way," said Steiner at last.

"How?"

"All the time we were there the woman did not speak."

*** END OF THE PROJECT GUTENBERG EBOOK IN THE GARDEN

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.